

U.S. COAST GUARD JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION	
SIMPLIFIED ACQUISITION PROCEDURES (SAP) FOR FAR 13.106-1(b)	
PURCHASE REQUEST OR REQUISITION NUMBER: 2125405B4500DL014	ESTIMATED TOTAL VALUE, INCLUDING OPTIONS: (Over Micro-Purchase Threshold, but up to the SAT) \$ 323,862.40
AUTHORITY	JUSTIFICATION TYPE
☐ 13.106-1(b)(1)	ONLY ONE SOURCE REASONABLY AVAILABLE (e.g., urgency, exclusive licensing agreements, or industrial mobilization).
☒ FAR 5.102(a)(6) , FAR 11.105 , FAR 13.106-1(b)(1)	BRAND NAME – Items peculiar to one manufacturer: The particular brand name, product, or feature is essential to the Government's requirements, and market research indicates other companies' similar products, or products lacking the particular feature, do not meet, or cannot be modified to meet, the agency's needs.
BRIEF DESCRIPTION OF SUPPLIES OR SERVICES REQUIRED AND THE INTENDED USE: Repair of eighty (80) Cylinder Heads; P/N: EX52904100073; NSN: 2815-12-401-6623 Used on the 154' WPC vessel MTU 4000 series diesel engines. OEM: Rolls-Royce Solutions GMBH; Cage: D8266 Estimate OIR - \$ 375.00, Estimate Repairs - \$3,673.28, Total estimated PR Cost each \$ 4,048.28 Estimated Total PR Cost - \$ 323,862.40	
SUGGESTED SOURCE NAME, ADDRESS, & UNIQUE ENTITY IDENTIFIER (UEI):	
Pacific Power Group, LLC UEI: VCWRFP45TJA9 Vendor POC: Mercedes Mogel Phone Number: 253-478-7291 Email: partssupport@pacificpowergroup.freshdesk.com Website: www.pacificpowergroup.com Estimate: \$323,862.40 Business Size Category: Large	Stewart & Stevenson FDDA LLC UEI: T1DUJLFCBEW3 Vendor POC: Carlos Sanchez Phone Number: 954-327-4440 Email: csanchez@kirbycorp.com Website: www.fdda.com Estimate: \$323,862.40 Business Size Category: Large
RATIONALE FOR JUSTIFICATION TYPE SELECTED ABOVE TO INCLUDE RELEVANT INFORMATION GAINED THROUGH YOUR MARKET RESEARCH TO SUPPORT THE JUSTIFICATION TYPE:	
The Cylinder Heads listed in this J&A are part of the MTU Motoren Turbinen-Union (MTU) Marine Diesel Engines currently in use on the 154' WPC Coastal Patrol vessels. The MTU diesel engines are highly complex commercial off the shelf items comprised of hundreds of interrelated parts, designed and manufactured by MTU. The engines were procured as a whole and were originally described as such by the Government; procurement was not based on Government specified descriptions of all of the various components contained within, and the Government has not bought those descriptions from MTU. Other than basic part/component descriptions (part numbers, etc.) provided by MTU, the Government does not possess technical specifications, tolerances etc. to provide to the various engine and electronic overhaul facilities to allow for full and open. The reliability of the main propulsion system on any vessel is critical to mission and safety; engine or control failure could potentially result in loss of life. The reliability of MTU manufactured/certified parts is known and acceptable; they have met Coast Guard mission requirements and safety standards through a decade of unrestricted use and thousands of operational hours. Any vendor contracted to overhaul these components shall use only OEM parts, have possession or can legally possess the required overhaul procedures, specifications and tolerances required and shall conduct performance testing as prescribed by the OEM. The 154' Patrol boats routinely operate in hazardous weather and heavy sea state conditions during the course of their multi-	

mission operations in support of Homeland Security in international and territorial waters. These missions include search and rescue, law enforcement, migrant interdiction, drug enforcement and human trafficking prevention. Any attempt to overhaul these components without the proper specifications, drawings, and technical data could cause catastrophic engine failure, loss of control, fire, and subsequent failure to meet unit mission requirements. Any failure of substituted or aftermarket parts could delay mission response, jeopardize the safety of the vessel and crew and possibly cause loss of life, property or damage to the environment.

The Coast Guard did not purchase the manufacturer's proprietary data rights and therefore cannot determine with certainty that alternative part numbers would mount to, interface with, be electrically compatible to, or operate effectively with the 154' WPC Coast Guard Cutters. Failure of alternative parts, not conforming to the OEM's specifications, could cause failure of the vessel propulsion system causing vessel degradation as explained above.

Rolls-Royce Solutions GMBH is the original equipment manufacturer. In accordance with Commandant Instruction M4130.6B, Coast Guard Configuration Management Manual, it is very important to maintain cutter configuration. Use of other than OEM products would entail development of an engineering change, as required by CGTO PG-85-00-900-G, Joint Surface Forces Engineering Change Process Guide. This is an expensive, lengthy process requiring months of engineering, research and development, testing, reviews and approvals, during which time the 154' WPC cutters may be operating at a reduced capability unable to complete their mission. It is likely the Coast Guard will not have the funding to complete this task or purchase the proprietary data rights if made available by the OEM.

Equipment Specialists will continue to conduct market research with a focus on locating vendors with the required specialized capabilities needed for this type of work; however, without the needed proprietary technical data listed above this will be difficult. The Coast Guard cannot require any OEM to release their technical data to allow for full and open competition.

CONTRACTING OFFICER - FAIR AND REASONABLE PRICE DETERMINATION METHODS:

☐	MARKET RESEARCH
☐	COMPARISON OF PROPOSED PRICE WITH PRICES FOUND REASONABLE ON PREVIOUS PURCHASES
☐	CURRENT PRICE LIST
☐	COMPARISON WITH SIMILAR ITEMS IN A RELATED INDUSTRY
☐	COMPARISON TO IGCE
☐	CONTRACTING OFFICER'S PERSONAL KNOWLEDGE (EXPLAIN)
☐	OTHER (EXPLAIN)

SIGNATURE AND TITLE OF TECHNICAL AND REQUIREMENTS POC

DATE

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